

		lack of necessary votes is due to apathy or undue difficulty in getting votes. As an aside, some parties point to the varying sizes of the sub-associations and the need for a super-majority of each as essentially providing the small sub-associations with a veto. That argument, however, is a red herring. Tract No. 6265 is the smallest sub-association with just six members, but five of those six members voted and voted in favor of the amendments. (Petitioner at p. 7.) As such, it was one of only two sub-associations that reached the required threshold. Moreover, in deciding this petition, the court is not empowered change the vote requirements because the court thinks the proposed changes are good changes or reasonable changes. Rather, the relevant code section only authorizes the court to change the voting requirements if it is convinced the failure to obtain the necessary super-majority number of votes to approve the proposed amendment is due to voter apathy or that it is otherwise impractical or unduly difficult to obtain the necessary consent from the members. The court is not so convinced. Petitioner states the alternative to consolidation of the CC&Rs, which is to enact amendments that would apply only to some of the seven tracts, would produce “a patchwork of CC&Rs that would be very difficult to administrate and make governance more difficult.” But no evidence is offered to support this claim. Based on the above, the Petition is DENIED. Petitioner’s request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (c); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Counsel for Petitioner is ordered to give notice of this ruling.
7.	<i>G. vs. Santa Ana Unified School District</i> 2026-01576260	Before the court is the petition of petitioner N.G., by and through his guardian ad litem Margarita Flores (Petitioner), for relief from Government Code section 945.4 pursuant to Government Code section 946.6. As more fully set forth below, the petition is GRANTED. On December 19, 2026, Petitioner mailed by certified mail, return receipt requested, a notice of claim to respondent

	Santa Ana Unified School District (District), Office of the Superintendent. Although this claim was timely submitted, Petitioner's attorney's office addressed and mailed the claim to the District at "1601 E. 17th Street" when it should have been addressed and mailed to the District at "1601 E. Chestnut Ave." (See Exh. 1.) It appears the District never received this claim. Upon discovering this mistake, Petitioner's counsel sent another claim to District on January 23, 2026. (See Exh. 2.) This second claim letter also included a section clearly identified as an application to present a late claim. On February 10, 2026, the District sent Petitioner's counsel a letter stating the claim was being returned without any action taken because it was not timely submitted within six months. The District told Petitioner's counsel it needed to submit an application for leave to present a late claim even though the claim submitted on January 23 included an application for leave to submit a late claim. (Exh. 3.) As such, it appears the District did not read all the January 23 claim. Because the January 23 claim clearly included an application for leave to present a late claim and the District took no action on it within 45 days, the application for leave to present a late claim is deemed denied. (Gov. Code §911.6(c).) Government Code section 946.6 provides as follows: "(a) If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4. . . . "(b) The petition shall show each of the following: "(1) That application was made to the board under Section 911.4 and was denied or deemed denied. "(2) The reason for failure to present the claim within the time limit specified in Section 911.2. "(3) The information required by Section 910. "The petition shall be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6. "(c) The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in
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	subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable: “(1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4. “(2) The person who sustained the alleged injury, damage, or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim. . . .” Based on the facts described above, Petitioner argues both of the grounds quoted above apply in this case. In response, the District argues Petitioner may not rely on the first ground—i.e., mistake, inadvertence, surprise, or excusable neglect—because that ground was not cited or described in the application to file late claim Petitioner submitted on January 23, 2026. In support of this contention, the District cites <i>Lincoln Unified School Dist. v. Superior Court</i> (2020) 45 Cal.App.5th 1079, 1094-1095 (<i>Lincoln</i>). <i>Lincoln</i> holds the reason for the late claim identified in the application to the governmental entity must be the same. (<i>Ibid.</i>) <i>Lincoln</i> goes on to explain the reason for this rule as follows: “[t]he purpose of allowing applications for leave to file late claims is to give the public entity an opportunity to examine petitioners’ reasons for not filing timely claims and to allow the public entity to grant the applications where the reasons are meritorious, thereby eliminating unnecessary litigation.” [Citation.] The public entity has no opportunity to examine a petitioner’s reasons if they are not provided or if they are subsequently changed.” (<i>Ibid.</i>) Here, that rationale does not apply because the District did not examine the reason Petitioner offered in the January 23 claim and application to submit late claim. Indeed, as stated above, the District did not even acknowledge the application to submit a late claim, but rather simply rejected the claim and told Petitioner to submit an application for a late claim. Hence, there is a significant question whether the <i>Lincoln</i> rule even applies here. To the extent relief from the late claim is available to Petitioner based on mistake, inadvertence, surprise, or excusable neglect, the court finds Petitioner has established a sufficient explanation. Petitioner’s counsel provides a
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		declaration explaining the mistake regarding the address and Petitioner’s counsel then acted promptly to address the mistake within approximately one month and within less than one year after the claim arose. Nonetheless, regarding of whether relief based on mistake, inadvertence, surprise, or excusable neglect under section 946.6(c)(1) is available, Petitioner is entitled to relief under section 946.6(c)(2) based on his minority throughout the period from claim accrual through submission of the application for leave to submit late claim (and through the time of the hearing and then some). Under section 946.6(c)(2) the court is required to grant Petitioner relief as long as Petitioner make the application for relief within a reasonable time. The District argues Petitioner is not entitled to relief under section 946.6(c)(2) because, where the delay results from the unexplained and inexcusable inattention of the claimant’s own representatives rather than from the claimant’s minority itself, the policy underlying the minority provisions is not served by relief. To support this contention, the District cites <i>Greene v. State of California</i> (1990) 222 Cal.App.3d 117, 121-122. <i>Greene</i>, however, did not involve a request for relief based on minority under section 946.6(c)(2) and the delay in <i>Greene</i>, was several months, not the one-month period between Petitioner’s initial December 19th claim and the January 23rd application for relief. More importantly, unreasonable delay by a minor’s parents or attorney (as opposed to delay attributable to the minor) will not bar a late claim application filed within one year of accrual of the cause of action—i.e., the parents’ and attorney’s neglect or ignorance is not imputed to the minor. (<i>Hernandez v. County of Los Angeles</i> (1986) 42 Cal.3d 1020, 1029; <i>J.M. v. Huntington Beach Union High School Dist.</i> (2017) 2 Cal.5th 648, 652; <i>Rousseau v. City of San Carlos</i> (1987) 192 Cal.App.3d 498, 501-502.) Based on the foregoing, the petition is GRANTED. Petitioner has 30 days to file suit against the District. [Gov. Code § 946.6(f); see <i>Ard v. County of Contra Costa</i> (2001) 93 Cal.App.4th 339, 343.) Petitioner’s counsel is ordered to give notice of this ruling.
8.	<i>Abdalla vs. Valdez</i> 2023-01369966	Before the court is the motion to strike or tax costs filed by defendant OC Marketing Brands (Defendant) against plaintiff Sherif S. Abdalla (Plaintiff). As set forth more fully below, the motion is GRANTED IN PART and DENIED IN